

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
M [REDACTED], an infant under the age of 14 years,
By her mother and natural guardian, MELISSA MAGARINO
And MELISSA MAGARINO individually,
Plaintiff(s)

Index.:

SUMMONS

-against-

POLICE OFFICER DUPONT OF THE 104 PRECINCT,
LIEUTENANT MICHAEL FAULK,
THE NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER JOHN DOE #1 OF THE 104 PRECINCT,
POLICE OFFICER JOHN DOE #2 OF THE 104 PRECINCT
and THE CITY OF NEW YORK

Defendants.

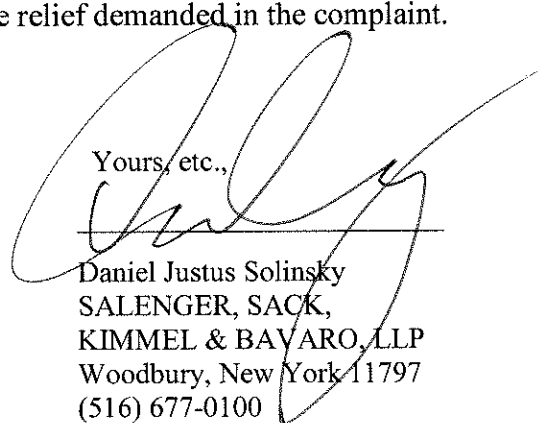
-----X
The place of trial is designated in the caption of this matter. The basis of venue is:
The County where the Defendant is located:
Defendant is located in: Queens County, and State of New York

To the above named Defendant(s): POLICE OFFICER DUPONT OF THE 104
PRECINCT, LIEUTENANT MICHAEL FAULK, THE NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER JOHN DOE #1 OF THE 104 PRECINCT, POLICE
OFFICER JOHN DOE #2, AND THE CITY OF NEW YORK

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to
serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice
of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons,
exclusive of the date of service (or within 30 days after the service is complete if this summons is
not personally delivered to you within the State of New York); and in case of your failure to appear
or answer, judgment will be taken against you by default for the relief demanded in the complaint
answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: Woodbury, New York
September 25, 2017

Yours, etc.,


Daniel Justus Solinsky
SALENGER, SACK,
KIMMEL & BAYARO, LLP
Woodbury, New York 11797
(516) 677-0100

- 1) **POLICE OFFICER DUPONT OF THE 104 PRECINT**
c/o New York City Police Department
1 Police Plaza, New York, New York
- 2) **LIEUTENANT MICHAEL FAULK**
c/o New York City Police Department
1 Police Plaza, New York, New York
- 3) **THE NEW YORK CITY POLICE DEPARTMENT**
1 Police Department, New York, New York
- 4) **POLICE OFFICER JOHN DOE #1**
c/o New York City Police Department
1 Police Department, New York, New York
- 5) **POLICE OFFICER JOHN DOE #2**
c/o New York City Police Department
1 Police Department, New York, New York
- 6) **CITY OF NEW YORK**
100 Church Street, New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
M [REDACTED] D [REDACTED], an infant under the age of 14 years,
By her mother and natural guardian, MELISSA MAGARINO
And MELISSA MAGARINO individually,

Index.:

**VERIFIED
COMPLAINT**

Plaintiff(s),

-against-

POLICE OFFICER DUPONT OF THE 104 PRECINCT,
LIEUTENANT MICHAEL FAULK,
THE NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER JOHN DOE #1 OF THE 104 PRECINCT,
POLICE OFFICER JOHN DOE #2 OF THE 104 PRECINCT
and THE CITY OF NEW YORK

Defendants.
-----X

Plaintiff, complaining of the defendants, by her attorneys, SALENGER, SACK,
KIMMEL & BAVARO, LLP., respectfully show to the court and allege as follows:

1. At all times hereinafter mentioned plaintiff M [REDACTED] D [REDACTED] (hereinafter "DEPERGOLA") is a resident of Queens, New York.
2. At all times hereinafter mentioned plaintiff MELISSA MAGARINO (hereinafter "MAGARINO") is a resident of Queens, New York.
3. Notice of plaintiff's claims against defendants CITY OF NEW YORK (hereinafter "CITY") and POLICE DEPARTMENT (hereinafter "POLICE DEPARTMENT"), setting forth the nature of the claims, the description of time, place and manner in which the injuries were sustained by the plaintiff and the name and post office address of the plaintiff and her attorneys, was presented to the governing body of said defendants on or about December 7, 2016.

4. The Notice of Claim was filed within the statutory time period for filing said Notice of Claim, provided by New York State General Municipal Law.

5. At least thirty (30) days have elapsed since service of such Notice of Claim without payment or adjustment of such claim and adjustment or payment thereof has been rejected or refused.

6. Upon information and belief, at all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY") was and remains a municipal corporation, incorporated and operating under the laws of the State of New York.

7. Upon information and belief, at all times hereinafter mentioned, defendant THE NEW YORK CITY POLICE DEPARTMENT ("POLICE DEPARTMENT") was and remains a municipal agency under the laws of the State of New York, under the supervision and control of the defendant CITY. Upon information and belief, the POLICE DEPARTMENT was and is the principal law enforcement agency for the CITY.

8. Upon information and belief, at all times hereinafter mentioned, defendant NEW YORK CITY POLICE DEPARTMENT OFFICER DUPONT (hereinafter referred to as "OFFICER DUPONT") is a party to this action individually and in his capacity as an agent of the CITY and/or POLICE DEPARTMENT.

9. At all times relevant to this action, OFFICER DUPONT was acting and/or holding himself out as acting within the scope of his employment with the CITY and/or the POLICE DEPARTMENT. OFFICER DUPONT is being sued individually and in his official capacity.

10. Upon information and belief, at all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY") was and remains a municipal corporation, incorporated and operating under the laws of the State of New York.

11. Upon information and belief, at all times hereinafter mentioned, defendant THE NEW YORK CITY POLICE DEPARTMENT ("POLICE DEPARTMENT") was and remains a municipal agency under the laws of the State of New York, under the supervision and control of the defendant CITY. Upon information and belief, the POLICE DEPARTMENT was and is the principal law enforcement agency for the CITY.

12. Upon information and belief, at all times hereinafter mentioned, defendant LIEUTENANT MICHAEL FAULK (hereinafter referred to as "LIEUTENANT FAULK") was acting within the scope of his employment.

13. At all times relevant to this action LIEUTENANT FAULK was acting and/or holding himself out as acting within the scope of his employment with the CITY and/or POLICE DEPARTMENT. LIEUTENANT FAULK is being sued individually and in his official capacity.

14. Upon information and belief, at all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY") was and remains a municipal corporation, incorporated and operating under the laws of the State of New York.

15. Upon information and belief, at all times hereinafter mentioned, defendant THE NEW YORK CITY POLICE DEPARTMENT ("POLICE DEPARTMENT") was and remains a municipal agency under the laws of the State of New York, under the supervision and control of the defendant CITY. Upon information and belief, the POLICE DEPARTMENT was and is the principal law enforcement agency for the CITY.

16. Upon information and belief, at all times hereinafter mentioned, defendant NEW YORK CITY POLICE DEPARTMENT OFFICER JOHN DOE #1 (hereinafter referred to as "JOHN DOE #1") is a party to this action individually and in his capacity as an agent of the CITY and/or POLICE DEPARTMENT.

17. At all times relevant to this action, JOHN DOE #1 was acting and/or holding himself out as acting within the scope of his employment with the CITY and/or POLICE DEPARTMENT. JOHN DOE #1 is being sued individually and in his official capacity.

18. Upon information and belief, at all times hereinafter mentioned, defendant NEW YORK CITY POLICE DEPARTMENT OFFICER JOHN DOE #2 (hereinafter referred to as "JOHN DOE #2") is a party to this action individually and in his capacity as an agent of the CITY and/or POLICE DEPARTMENT.

19. At all times relevant to this action, JOHN DOE #2 was acting and/or holding himself out as acting within the scope of his employment with the CITY and/or POLICE DEPARTMENT. JOHN DOE #1 is being sued individually and in his official capacity.

20. Upon information and belief, at all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY") was and remains a municipal corporation, incorporated and operating under the laws of the State of New York.

21. Plaintiff has a right to be free from illegal searches and seizures of her person; a right to be free from unlawful arrest, detention, and imprisonment; a right to equal protection of the laws; civil rights secured to plaintiff by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States and by Title 42 of the United States Code. Section 1983, as well as the Constitution and laws of the State of New York.

22. Upon information and belief, at all times hereinafter mentioned, defendant POLICE DEPARTMENT has and still has full power and authority to provide initial and ongoing training, and to supervise and control and conduct and action of police officers employed by it and/or defendant CITY, in the exercise of police functions.

23. Upon information and belief, at all times hereinafter mentioned, it was and remains the duty and special duty of the defendant POLICE DEPARTMENT, owed to plaintiff, to monitor, supervise, and control the conduct and actions of the aforesaid police officers employed by it and/or defendant CITY, in the exercise of police functions.

24. Upon information and belief, at all times hereinafter mentioned, defendant CITY had and still has full power and authority to provide initial and ongoing training and to supervise and control the conduct and actions of the aforesaid police officers employed by it and/or defendant POLICE DEPARTMENT, in the exercise of police functions.

25. Upon information and belief, at all times hereinafter mentioned, it was and remains the duty of defendant(s) OFFICER DUPONT, LIEUTENANT FAULK, JOHN DOE #1 and JOHN DOE #2 of THE NEW YORK CITY POLICE DEPARTMENT owed to plaintiff, to carry out their official police duties in a manner that is consistent with the Constitution and laws of New York State and the United States of America.

26. At all times relevant herein, it is alleged that all defendants breached these duties owed to plaintiff.

AS AND FOR A FIRST CAUSE OF ACTION

27. Plaintiff repeats and realleges paragraphs "1" through "26" above as if fully set forth and restated here.

28. On September 25, 2016 at approximately 8000 Cooper Avenue, Glendale, New York, County of Queens, City and State of New York, Plaintiff's infant, thirteen (13) years of age, was lawfully present at a shopping mall, when, without probable cause, reasonable suspicion or a warrant and in violation of her State and Federal Constitutional rights, Plaintiff's infant was

stopped, searched, detained, handcuffed, imprisoned, arrested and removed from the above location and taken to the 104th precinct at 64-2 Catalpa Ave., Queens, NY, 11385.

29. Plaintiff was subjected to unlawful harassment, intimidation, detention, false and unlawful arrest, and illegal search, false placement in handcuffs, embarrassment and humiliation.

30. Plaintiff suffers violations of her civil rights under New York State and Federal laws.

31. As a result of OFFICER DUPONT, OF THE NEW YORK CITY POLICE DEPARTMENT improper and illegal conduct, Plaintiff was humiliated and embarrassed publicly.

32. As a result of LIEUTENANT FAULK of the NEW YORK CITY POLICE DEPARTMENT improper and illegal conduct, Plaintiff was humiliated and embarrassed publicly.

33. As a result of OFFICER JOHN DOE #1, OF THE NEW YORK CITY POLICE DEPARTMENT improper and illegal conduct, Plaintiff was humiliated and embarrassed publicly.

34. As a result of OFFICER JOHN DOE #2, OF THE NEW YORK CITY POLICE DEPARTMENT improper and illegal conduct, Plaintiff was humiliated and embarrassed publicly.

35. Plaintiff's infant D [REDACTED] was arrested without probable cause.

36. Plaintiff's infant D [REDACTED] was illegally searched.

37. Plaintiff's infant D [REDACTED] was held in custody at the hands of the POLICE DEPARTMENT.

38. Plaintiff's infant D [REDACTED] was subjected to verbal and physical abuse and intimidation from POLICE OFFICERS.

39. As a result of the aforementioned actions of the defendants, plaintiffs infant D [REDACTED] suffered physical, emotional, vocational, and financial injury.

40. As a result of the acts of one or more of the defendants, and the breaches of the duties owed to the plaintiff by the defendants, Plaintiff's infant D [REDACTED] was subjected to unlawful harassment and intimidation; unlawful detention and false and unlawful arrest; illegal search; unlawful and false placement in handcuffs; unlawfully and illegally imprisoned; falsely imprisoned; embarrassment and humiliation before the public; humiliation; missed school, and plaintiff suffered a violation of her civil rights under New York State and Federal law and New York State and United States Constitutions.

41. Plaintiff was required to incur legal expenses in order to properly and adequately defend against these false charges, and lost time from school.

AS AND FOR A SECOND CAUSE OF
ACTION AGAINST ALL DEFENDANTS:

42. Plaintiff repeats and realleges paragraphs '1' through '41' above as if fully set forth and restated here.

43. The acts of defendants described above were all performed with malice and premeditation under color of state law with willful and wanton disregard of plaintiff's civil rights under the Second, Fourth, and Fourteenth Amendments of the Constitution and in contravention of the letter and spirit of 42 U.S.C. Sections 1983 and 1985, and defendants conspired to deprive plaintiff of such rights.

44. As a result of these acts, plaintiff's infant D [REDACTED] has suffered great emotional trauma, physical discomfort, embarrassment, was deprived of his liberty; falsely and illegally imprisoned; her personal reputation was impaired; was forced to retain counsel at monetary expense to represent her in criminal proceedings stemming from her illegal arrest; and was required to employ and did employ the undersigned attorney to prosecute her action, thereby

becoming obligated to pay said attorney a reasonable fee for services in connection with and in furtherance of this action arising out of the conduct of the defendants.

AS AND FOR A THIRD CAUSE OF ACTION
AGAINST ALL DEFENDANTS

45. Plaintiff repeats and realleges paragraphs "1" through "44" above as if fully set forth and restated here.

46. In doing the acts and things complained of, defendants were conspirators engaged in a scheme and conspiracy designed and intended to deny and deprive plaintiff of civil rights guaranteed to her under the Second, Fourth, and Fourteenth Amendments of the Constitution and in contravention of the letter and spirit of 42 U.S.C. Sections 1983 and 1985.

47. As a direct consequence and result of the acts of defendants hereinabove complained of, plaintiff was deprived of her liberty; denied due process of law; and denied equal protection of the law; suffered such anxiety and distress, discomfort, embarrassment and humiliation; was required to spend substantial sums of money for legal representation and other expenses associated with legal proceedings defending herself against criminal charges arising from defendants' illegal acts against her; and was required to divert substantial time, effort and recourses from employment and educational opportunities.

AS AND FOR A FOURTH CAUSE OF ACTION
AGAINST THE DEFENDANTS CITY AND POLICE DEPARTMENT

48. Plaintiff repeats and realleges paragraphs "1" through "47" above as if fully set forth and restated here.

49. Upon information and belief at all relevant times, the CITY and/or POLICE DEPARTMENT, negligently and/or intentionally acted under color of state law, engaged in a pattern of actions and/or conduct and/or omissions by its officers designed to and/or which has the

effect of depriving individuals of their clear rights under the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

50. Upon information and belief, at all relevant times, the CITY and/or the POLICE DEPARTMENT, negligently and/or intentionally failed to properly train and/or supervise their law enforcement agents as to the appropriate and reasonable methods for identifying the commissions of acts sufficient to justify legal arrest and/or effectuation of legal and reasonable arrest.

51. Upon information and belief, at all relevant times, the CITY and/or the POLICE DEPARTMENT, negligently and/or intentionally acted under color of state law, engaged in a pattern and practice and/or sanctioned a pattern and practice of actions and/or conduct by its officers designed to and/or conduct by its officer designed to and/or which has the effect of depriving individuals of their clear rights under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

52. Upon information and belief, at all relevant times, the CITY and/or POLICE DEPARTMENT, negligently and/or intentionally failed to properly train and/or supervise their law enforcement agents as to the appropriate and reasonable methods for identifying the commissions of acts sufficient to justify legal arrests and/or effectuation of legal and reasonable arrests.

53. Based on the foregoing, one and/or more of the above municipalities are vicariously liable for the violations of plaintiff's constitutional rights by one and/or more of its/their respective employees.

54. Based upon the foregoing, one more of the above-named defendants violated 42 U.S.C. Section 1983, given that these actions were undertaken under color of state law.

AS AND FOR A FIFTH CAUSE OF ACTION, AGAINST ALL DEFENDANTS FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS:

55. Plaintiff repeats and realleges paragraphs “1” through “54” above as if fully set forth and restated here.

56. Defendants, OFFICER DUPONT, LIEUTENANT FAULK, JOHN DOE #1 JOHN DOE #2 of THE NEW YORK CITY POLICE DEPARTMENT, and CITY OF NEW YORK intentionally engaged in behavior that harassed and intimidated the plaintiff and falsely detained, falsely and illegally incarcerated, arrested, and charged plaintiff maliciously and in a manner that was extreme, outrageous, unjustified, and done with actual malice and wanton indifference to and deliberate disregard for the civil rights of plaintiff, causing plaintiff to suffer physical and emotional distress for which said defendants are individually liable.

AS AND FOR A SIXTH CAUSE OF ACTION, AGAINST ALL DEFENDANTS FOR
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

57. Plaintiff repeats and realleges paragraphs “1” through “56” above as if fully set forth and restated here.

58. Defendants OFFICER DUPONT, LIEUTENANT FAULK, JOHN DOE #1, JOHN DOE #2 of THE NEW YORK CITY POLICE DEPARTMENT, and THE CITY OF NEW YORK negligently engaged in behavior that harassed and intimidated the plaintiff and falsely detained, falsely and illegally incarcerated; arrested; and charged plaintiff maliciously and in a manner that was extreme, outrageous, unjustified, and done with actual malice and wanton indifference to and deliberate disregard for the civil rights of plaintiff, causing plaintiff to suffer physical and emotional distress for which said defendants are individually liable.

AS AND FOR A SEVENTH CAUSE OF ACTION,
AGAINST DEFENDANTS CITY AND POLICE DEPARTMENT:

59. Plaintiff repeats and realleges paragraphs “1” through “58” above as if fully set forth and restated here.

60. At all times relevant hereto, defendants OFFICER DUPONT, LIEUTENANT FAULK, JOHN DOE #1 and JOHN DOE #2 of THE NEW YORK CITY POLICE DEPARTMENT were acting within the scope of their employment as officers of the POLICE DEPARTMENT and the CITY.

61. The Defendants CITY and POLICE DEPARTMENT are liable for compensatory damages under the doctrine of *respondeat superior* for the intentional torts of defendants OFFICER DUPONT, LIUTENANT FAULK, JOHN DOE #1 and JOHN DOE #2 of THE NEW YORK CITY POLICE DEPARTMENT committed within the scope of their employment.

AS AND FOR AN EIGHTH CAUSE OF ACTION, AGAINST DEFENDANTS
CITY AND POLICE DEPARTMENT FOR NEGLIGENCE:

62. Plaintiff repeats and realleges paragraphs “1” through “61” above as if fully set forth and restated here.

63. Defendant CITY and POLICE DEPARTMENT owed plaintiff a duty to properly and adequately train, monitor, supervise and otherwise control their police officers in the exercise of police functions.

64. Defendants CITY and POLICE DEPARTMENT failed to provide proper and adequate training, supervision, and control of defendants OFFICER DUPONT, LIEUTENANT FAULK, JOHN DOE #1 and JOHN DOE #2 of THE NEW YORK CITY POLICE DEPARTMENT which failure constitutes negligence.

65. As a proximate cause of said negligence of CITY and POLICE DEPARTMENT, plaintiff sustained the injuries and violates of her rights as aforesaid.

66. Said negligence constitutes a willful and wanton indifference and deliberate disregard for the rights of private citizens, including plaintiff.

AS AND FOR A NINTH CAUSE OF ACTION,
AGAINST ALL DEFENDANTS

67. Plaintiff repeats and realleges paragraphs "1" through "66" above as if fully set forth and restated here.

68. Defendants OFFICER DUPONT, LIEUTENANT FAULK, JOHN DOE #1, JOHN DOE #2 of THE NEW YORK CITY POLICE DEPARTMENT, and THE CITY OF NEW YORK used criminal process against plaintiff in order to harass her and in order to cover up their own wrongdoing and to avoid civil liability for their own acts relating to intimidating the plaintiff, and wrongfully taking her into custody by force without warrant or probable cause that any crime had been committed.

69. Said defendants falsely arrested, falsely imprisoned, falsely and illegally incarcerated plaintiff.

70. As a proximate result of this malicious abuse of process, false arrest, and false imprisonment, plaintiff suffered the damages as aforesaid.

AS AND FOR A TENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES AGAINST ALL DEFENDANTS:

71. Plaintiff repeats and realleges paragraphs "1" through "70" above as if fully set forth and restated here.

72. The acts, conduct, and behavior of the defendants, and each of them, were performed knowingly, intentionally, maliciously, and conspiratorially, and were so egregious as to shock the conscience.

73. By reason of the foregoing, plaintiff is entitled to an award of punitive damages in the sum of ONE MILLION ONE HUNDRED TWENTY FIVE THOUSAND (\$1,125,000.00).

AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR ATTORNEY'S FEES
AGAINST ALL DEFENDANTS:

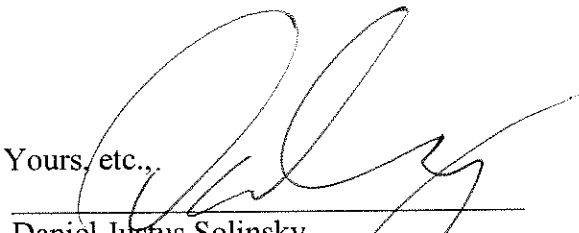
74. Plaintiff repeats and realleges paragraphs "1" through "73" above as if fully set forth and restated here.

75. By the reason of the foregoing, plaintiff is entitled to an award of reasonable attorneys' fees, pursuant to 42 U.S.C. Section 1988.

WHEREFORE, the plaintiffs demand judgment against the defendants on all causes of action on behalf of infant plaintiff M [REDACTED] D [REDACTED] in an amount in excess of the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action and for such other and further relief as to this court may seem just and proper.

Dated: Woodbury, New York
September 25, 2017

Yours, etc.,



Daniel Justus Solinsky
**SALENGER, SACK,
KIMMEL & BAVARO, LLP**
Attorneys for Plaintiffs
180 Froehlich Farm Blvd.
Woodbury, NY 11787
(516) 677-0100
(516) 677-0443 Facsimile

ATTORNEYS' AFFIRMATION

The undersigned, an attorney duly admitted to practice in the courts of the State of New York, hereby affirms the following under the penalties of perjury, that the affiant is a(n) member of SALENGER, SACK, KIMMEL & BAVARO, attorneys of record for the plaintiff(s) in the within action; that the affiant has read the foregoing

Complaint

and know the contents thereof; and the same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true. Affiant further says that the reason this affirmation is made by affiant and not by the plaintiff, is that the plaintiff is currently outside the County where our office is maintained.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Statements of the plaintiff(s), contents of file, books and records

Dated Woodbury, New York
September 25, 2017



Daniel J. Solinsky
SALENGER, SACK,
KIMMEL, BAVARO, LLP
Attorneys for Plaintiff
180 Froehlich Farm Blvd.
Woodbury, New York 11797
(516) 677-0100

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

M. [REDACTED] D. [REDACTED], an infant under the age of 14 years, by her mother and natural guardian, MELISSA MAGARINO, and MELISSA MAGARINO, Individually,

Plaintiffs,

-against-

POLICE OFFICER DUPONT OF THE 104th PRECINT, LIEUTENANT MICHAEL FAULK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JOHN DOE #1 OF THE 104 PRECINT, POLICE OFFICER JOHN DOE #2 OF THE 104 PRECINT, and THE CITY OF NEW YORK

Defendants.

SUMMONS AND COMPLAINT

SALENGER, SACK, KIMMEL & BAVARO
Attorneys for PLAINTIFFS
180 Froehlich Farm Boulevard
Woodbury, New York 11797
(516) 677-0100

TO: Defendants